

**SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY**

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KYLE SIMON and HELEN RICKETTS-SIMON
PIERRE NORTHCUTT

Index No.

Plaintiffs

v.

SUMMONS

THE CITY OF NEW YORK, JONATHAN PEREZ,
DOES 1-10

:
:

**PLAINTIFF DEMANDS
TRIAL BY JURY**

Defendant(s)

-----X-----

THE PLAINTIFF DESIGNATES KINGS COUNTY AS THE PLACE OF TRIAL.

THE BASIS OF THE VENUE IS LOCATION OF INCIDENT

To the above-named Defendants

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, on the Plaintiffs' attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: 02/9/2021

s/

Uwem Umoh, Esq.
Attorney for Plaintiffs
25 Bond St, 2nd Floor
Brooklyn, NY 11201
718-360-0527

**SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY**

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KYLE SIMON and HELEN RICKETTS-SIMON
PIERRE NORTHCUTT

Index No.

Plaintiffs

v.

COMPLAINT

THE CITY OF NEW YORK, JONATHAN PEREZ,
DOES 1-10

:

PLAINTIFF DEMANDS

:

TRIAL BY JURY

Defendant(s)

:

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TAKE NOTICE, the Plaintiffs KYLE SIMON and HELEN RICKETTS-SIMON, hereby appear in this action by their attorneys, Umoh Law Firm, and demands that all papers be served upon them, at the address below, in this matter.

Plaintiffs complaining of the defendants, The City of New York, OFFICER JONATHAN PEREZ, P.O. "Jane Does" and "John Does" collectively referred to as the Defendants, upon information and belief alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom, and or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and by 42 U.S.C. § 1983 [and § 1985], [and arising under the law and statutes of the State of New York].
2. This is an action to further seek compensation for the serious and permanent personal injuries sustained by the plaintiff, as a result of the negligence of the defendants, perpetrated while said defendant police officers were in the process of illegally and unlawfully arresting plaintiff. A timely notice of claim was filed.

PARTIES

3. Plaintiffs resides in Brooklyn, New York and is a resident of the State of New York.
4. Defendants Police Officer JONATHAN PEREZ and John Does are, and at all times relevant to this action, were officers employed by the City of New York and acting under color of state law. Said officers are being sued in both their individual and official

capacities.

5. The Defendant, City of New York, is a municipality in the State of New York and employs the Defendants Police Officers.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

6. Plaintiffs seek damages for serious personal injuries sustained by the claimant, due to the negligence of the City of New York. As a result of conduct by the City of New York and its agents, claimant sustained permanent injuries.
7. On or about August 11, 2019 plaintiffs were at home when police officers employed by the City of New York arrived and arrested him. Pierre Northcutt was placed in handcuffs and taken away. The police falsely stated that plaintiffs had a gun and had threatened Mr. Simon's neighbor. All plaintiffs denied this.
8. Despite this denial, plaintiff Rickett-Simon was placed in handcuffs and her home was searched. She did not consent to the search and her children, who were bathing, were nude. Kyle Simon was arrested and held for 3 days, and the officers stated that Kyle Simon had threatened a stranger with a gun. However, he had not done so and the charges were later dropped in October 2019.
9. Plaintiffs' arrest was unlawful and without a warrant it was as a result of the negligence and intentional acts of the City of New York.
10. Plaintiffs sustained injuries to his wrists and hands after being in handcuffs for over eight hours as a result of the incident.
11. The officers unlawfully searched the home of Ricketts and Simon, over their objections, and though they did not recover anything unlawful, they arrested Kyle Simon and took him to central booking where he was held for approximately 24 hours. The Officers forced their way into the home, pushing Ms. Ricketts aside as they made their way in.
12. That even though the defendant police officers and District Attorney knew, or should have known, based on the facts that no crime had been committed, they still proceeded to arrest plaintiff, charge and then drop same charges, assault and incarcerate plaintiff just to intimidate plaintiff, further aggravating the plaintiffs' injuries.
13. At no time did plaintiff commit any offense against the laws of New York City and or State for which an arrest may be lawfully made. At no time did the plaintiff trespass at the alleged property or commit any illegal acts, or engage in any conduct which in any way justified the brutal and unlawful actions of the police.
14. As a direct and proximate result of defendants' actions, plaintiff suffered and continues to suffer

injuries, including but not limited to emotional distress, nightmares, panic attacks, mental anguish and unwarranted severe anger bouts some or all of which may be permanent.

15. The unlawful arrest of plaintiffs, plaintiffs' wrongful imprisonment and malicious prosecution and due process violation because of defendants' knowledge of a lack of any legitimate cause or justification, were intentional, malicious, reckless and in bad faith.
16. As a direct and proximate result of defendants' actions, plaintiffs suffered and continues to suffer, mental anguish, repetitive injury, psychological and emotional distress, and physical pain and suffering, some or all of which may be permanent.
17. As a direct and proximate result of his unlawful detention, assault, confinement, Plaintiffs has lived in terror of their attack, and continues to suffer from nightmares, are fearful of going outside and when he sees the police, and suffer various emotional attacks, in addition, and have been unable to function normally which has caused a severe strain and breakdown in his personal relationships, in and outside of his home.
18. As a direct and proximate result of defendant's actions, plaintiff was arrested, detained without just or probable cause.
19. As a direct and proximate result of defendants' actions, plaintiffs were deprived of rights, privileges and immunities under the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and the laws of the City of New York and the State of New York.
20. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to properly sanction or discipline police officers including the defendants in this case, for violations of the constitutional rights of citizens, thereby causing police officers including defendants in this case, to engage in unlawful conduct.
21. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to sanction or discipline police officers including the defendants in this case, who are aware of and subsequently conceal violations of the constitutional rights of citizens by other police officers thereby causing and encouraging police officers including defendants in this case, to engage in unlawful conduct.
22. The actions of defendants, acting under color of State law, deprived plaintiff of his rights, privileges and immunities under the laws and Constitution of the United States; in particular, the rights to be secure in his person and property, to be free from the excessive use of force and from malicious prosecution, abuse of process, and the right to due process.
23. By these actions, defendants have deprived plaintiff of rights secured by the Fourth, Eighth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. Section 1983

24. A written claim was filed upon the City of New York, and at least thirty-days have elapsed since the service of the Notice of Claim and the adjustment or the payment of the claim has been neglected or refused.
25. This action has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

AS A FIRST CAUSE OF ACTION:

42 U.S.C Section 1983-against Defendants Officers

26. Plaintiff hereby restates all paragraphs above of this complaint, as though fully set forth below
27. By detaining and imprisoning plaintiffs without justification, probable cause or reasonable suspicion, the Officers, Defendants deprived Plaintiffs of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. Section 1983, including, but not limited to, rights guaranteed by the Fourth, Fifth, Eighth and Fourteenth Amendments of the United States Constitution.
28. In addition, the Defendant officers conspired among themselves to deprive plaintiff of his constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth, Fifth, Eighth and Fourteenth Amendments to United States Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
29. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Said acts by the Defendants Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiff of his constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth, Eighth and Fourteenth Amendments to the United States Constitution.
30. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein before stated.

AS A SECOND CAUSE OF ACTION:

42 U.S.C Section 1983-against Defendants Officers

31. Plaintiff hereby restates all paragraphs above of this complaint, as though fully set forth below
32. By maliciously prosecuting plaintiffs without justification, probable cause, the Officers, Defendants deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. Section 1983, including,

but not limited to, rights guaranteed by the Fourth, Eighth and Fourteenth Amendments of the United States Constitution.

33. In addition, the Defendant officers and district attorney conspired among themselves to deprive plaintiff of his constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth, fifth, Eighth and Fourteenth Amendments to United States Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
34. The defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as agents of the City of New York. Said acts by the defendants were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive the plaintiff of his constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth, Eighth and Fourteenth Amendments to the United States Constitution.
35. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein before stated.

AS A THIRD CAUSE OF ACTION:

New York State Constitution, Art. 1 Section 12

36. Plaintiff hereby restates all paragraphs of this complaint, as though fully set forth below
37. By detaining and imprisoning Dante Jones, without probable cause or reasonable suspicion, using excessive force, and assaulting them, the Defendant Officers deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article 1, Section 12 of the New York Constitution.
38. In addition, the Defendant Officers conspired among themselves to deprive plaintiff of his constitutional rights secured by Article 1, Section 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
39. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Said acts by the Defendants Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiffs of his constitutional rights secured by Article 1, Section 12 of the New York Constitution.
40. Defendants, their officers, attorneys, agents, servants and employees were responsible for Plaintiff's deprivation of his state constitutional rights. Defendant City, as employer of each of the Officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

41. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages herein-before alleged.

AS A FOURTH CAUSE OF ACTION:

New York State Constitution, Art. 1 Section 12

42. Plaintiff hereby restates all paragraphs of this complaint, as though fully set forth below
43. By maliciously prosecuting Dante Jones, without probable cause or reasonable suspicion, using excessive force, and assaulting them, the Defendant Officers deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article 1, Section 12 of the New York Constitution.
44. In addition, the Defendant Officers conspired among themselves to deprive plaintiff of his constitutional rights secured by Article 1, Section 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
45. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Said acts by the Defendants Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiffs of his constitutional rights secured by Article 1, Section 12 of the New York Constitution.
46. Defendants, their officers, attorneys, agents, servants and employees were responsible for Plaintiff's deprivation of his state constitutional rights. Defendant City, as employer of each of the Officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
47. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages herein-before alleged.

AS A FIFTH CAUSE OF ACTION:

Malicious Prosecution

48. Plaintiffs hereby restates all paragraphs of this complaint, as though fully set forth below.
49. The Defendants Officers wrongfully and illegally detained, and imprisoned the Plaintiffs.
50. The wrongful arrest and imprisonment of the Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.

51. At all relevant times, the Officers Defendants acted forcibly in apprehending, detailing, and imprisoning the Plaintiffs.
52. During this period, the Plaintiffs was unlawfully and wrongfully assaulted, harassed, detained, and threatened.
53. Throughout this period, the Plaintiffs was unlawfully, wrongfully, and unjustifiably detained, deprived of their liberty, and imprisoned.
54. All of the foregoing occurred without any fault or provocation on the part of the Plaintiffs.
55. Defendants, their officers, agents, servants, and employees were responsible for plaintiff's detention and imprisonment during this period of time. Defendant City of New York, as employer of the Officers Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
56. The Defendants Officers acted with a knowing, willful, wanton, grossly reckless, unlawful, unreasonable, unconscionable, and flagrant disregard of the Plaintiffs' rights, privileges, welfare, and well-being and are guilty of egregious and gross misconduct toward Plaintiff.
57. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages herein-before stated.

AS FOR A SIXTH CAUSE OF ACTION:

Due Process Violation

58. The Plaintiffs hereby restates all paragraphs of this complaint, as though fully set forth below.
55. The Defendants Officers engaged in conduct that impaired plaintiffs' ability to have a fair trial, such as offering false statements.
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58. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages herein-before stated.

WHEREFORE, plaintiff respectfully requests judgment against the Defendants as follows:

1. On the First Cause of Action against all the defendants, compensatory and punitive

2. On the Second Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, and punitive damages against the Officers Defendants in an amount to be determined at trial;
3. On the Third Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, punitive damages against the Officers Defendants in an amount to be determined at trial;
4. On the Fourth Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, punitive damages against the Officers Defendants in an amount to be determined at trial;
5. On the Fifth Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, punitive damages against the Officers Defendants in an amount to be determined at trial;
6. On the Sixth Cause of Action, against the City of New York, compensatory damages in an amount to be determined at trial; and
7. Such other and further relief as this Court may deem necessary in the interest of justice.

Brooklyn, New York

Respectfully Submitted

/s/

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